

21STCV03737 21STCV03737

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-13

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 13, 2026

CASE NUMBER

21STCV03737, related to 21STCV02841

MOTION

Motion to Quash Subpoena

MOVING PARTY

Defendant, Cross-Complainant, and Cross-Defendant Paragon

Resources Incorporated

OPPOSING PARTIES

Defendant and Cross-Defendant Julian Ledesma

MOTION

Defendant,
Cross-Complainant, and Cross-Defendant Paragon Resources Incorporated
("Paragon") moves to quash a deposition notice Defendant and Cross-Defendant
Julian Ledesma ("Ledesma") served regarding the deposition of Paragon's person
most qualified to testify on specified topics.
Ledesma opposes the motion.

ANALYSIS

Code of Civil Procedure section 2025.420
provides, "The court, for good cause shown, may make any order that justice
requires to protect any . . . deponent . . . from unwarranted annoyance,
embarrassment, or oppression, or undue burden and expense" (Code Civ.
Proc., § 2025.420.)

Paragon argues the deposition notice does not
adequately specify the matters on which Paragon's person most qualified must
testify. If a deponent is a corporation
or other entity, the deposition notice must describe with "reasonable
particularity" the matters on which questions will be asked so that the
deponent can designate the "most qualified" persons to testify on its behalf. (Code Civ. Proc., § 2025.230.) Paragon
contends categories Nos. 7, 8, 10,
11, 15, 16, and 17 are not reasonably particularized categories for which
Paragon can designate a witness to testify.
Paragon is incorrect.

Matters must be reasonably particularized
from the point of view of the party on whom the demand for discovery is
made. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53
Cal.App.4th 216, 222.) The matters are readily
understandable from Paragon's perspective.
As such, the matters are reasonably particularized. While Paragon complains these matters could
also constitute document demands, Paragon cites no authority for the
proposition matters are not reasonably particularized if those matters could
also constitute document demands. Certainly,
a witness may testify about matters for which relevant documents might also
exist. Moreover, Ledesma has conceded he is not seeking production of documents
through the deposition notice, but rather testimony, which in part, may concern
the existence of documents.

The Court also notes Paragon's argument the deposition notice may call for testimony which is irrelevant or privileged is premature. The Court cannot limit the deposition notice, which calls for discoverable information, based on the parties' speculation in this regard. In any event, Paragon will not be foreclosed from asserting any appropriate objections at the deposition.

Paragon correctly notes the deposition notice does not contain document demands. As such, any references to electronically-stored materials are irrelevant. As noted above and conceded by Ledesma, the deposition notice does not compel Paragon to produce documents or electronically-stored materials.

Accordingly, the motion to quash is denied, and Paragon is to produce a person or persons most qualified to testify regarding the topics in the deposition notice within 30 days of the notice of the Court's order.[1]

Under the particular circumstances of this matter, the Court does not find the imposition of sanctions is warranted. Therefore, the sanctions request is denied.

Paragon is to give notice of the Court's ruling and to file proof of service of same.

[1]To the extent Paragon contends discovery is closed and precludes the taking of the deposition at issue, such contention is wholly inappropriate, as the record reflects this discovery was initiated well before any purported discovery cut-off date.